

SPECIAL NOTICE TO COUNSEL WHO WILL PRESENT ORAL ARGUMENT

1. Approximately seven days before the scheduled argument date, the Clerk's Office will email counsel for all parties to confirm their attendance. **Counsel must respond to the email within two business days** to confirm they will be appearing to present oral argument. If counsel is arguing remotely, the Clerk's Office will email instructions and a link for a Zoom practice session approximately three days before the scheduled argument date.
2. Every attorney who orally argues an appeal must be admitted to practice in this court. Government attorneys are exempted from this requirement. Circuit Rule 46(a).
3. Counsel presenting oral argument must check in at the Clerk's Office at least 15 minutes prior to their scheduled time. The panel of judges and the order of cases to be argued are posted online and on the bulletin board outside the courtroom by 9:00 a.m. each day the court is in session.
4. Because oral arguments occasionally end before their allotted time expires, counsel is expected to be in the courtroom during the argument of the case immediately preceding theirs. Please be prepared to move to the appropriate counsel table for the commencement of your argument.
5. Counsel presenting oral argument must sit at the appropriate counsel table when the case is called for oral argument. When facing the bench, appellant's counsel table is on the left and appellee's counsel table is on the right. Counsel should remain seated at counsel table during their opponent's entire argument.
6. In planning your oral argument, please keep in mind that the judges have read the briefs. Lengthy expositions of the facts should be avoided, unless requested by the court. Please do not initiate your argument with a recitation of who will be splitting time with whom and/or how much time you have decided to reserve for rebuttal. The judges will already have this information.
7. A timer on the podium will light up green once it starts counting down from the total argument time, it will light up yellow when there is one minute remaining, and it will light up red once the time has expired. Appellant's counsel must keep track of the allotted time and notify the panel when they wish to reserve the remaining time for rebuttal. The court will NOT stop the timer once counsel reaches their rebuttal time. If counsel does not stop themselves, counsel risks arguing through their entire allotted time and losing their planned rebuttal time.
8. Appropriate attire for counsel is conservative business dress in traditional dark colors (e.g., navy blue or charcoal gray).
9. Counsel may use laptops and smartphones in the courtroom and lawyers' room but must ensure they do not make any noise. All cellular phones must be set to silent mode. Cameras are not allowed. Wi-fi is available in the lawyers' room.
10. The court is handicapped accessible. It will provide reasonable accommodations to persons with communications disabilities. It will also provide sign language interpreters or other auxiliary aids and services to participants in oral arguments who are deaf, hearing impaired, or have communication

disabilities. The court may provide these services to others, including spectators, only if the court deems it appropriate.

Participants who require these services must contact the Clerk's Office at (312) 435-5850 at least three weeks prior to oral argument to allow the Clerk adequate time to make necessary arrangements. Anyone providing their own services, at their own expense, should advise the Clerk's Office at least two days prior to oral argument so proper accommodations can be made in the courtroom.

Thank you for your cooperation.
Christopher G. Conway, Clerk of Court

It is important that you arrive EARLY to the courthouse. You will be required to present photo identification to court security personnel when going through security screening.

Thank you,
U.S. Court of Appeals

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